

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 34, RICHMOND
JUDICIAL OFFICER: LEONARD E MARQUEZ
HEARING DATE: 12/30/2025

INSTRUCTIONS FOR CONTESTING TENTATIVE RULING IN DEPARTMENT
34

The tentative ruling will become the ruling of the Court unless by 4:00PM of the Court day preceding the hearing, notice is given of an intent to argue the matter. Counsel or self-represented parties must email Department 34 (Dept34@contracosta.courts.ca.gov) to request argument and must specify, in detail, what provision(s) of the tentative ruling they intend to argue and why. Counsel or self-represented parties requesting argument must advise all other counsel and self-represented parties by no later than 4:00PM of their decision to argue, and of the issues to be argued. Failure to timely advise the Court and counsel or self-represented parties will preclude any party from arguing the matter. (Pursuant to Local Rule 3.43(2).)

ALL APPEARANCES TO ARGUE WILL BE IN PERSON OR BY ZOOM, PROVIDED
THAT PROPER NOTIFICATION IS RECEIVED BY THE DEPARTMENT AS PER
ABOVE.
Zoom link-

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ca.zoomgov.com/j/1611085023?pwd=SUxPTEFLVzRFYXZycWdTWlJCdlhIdz09](https://contracosta-courts-ca.zoomgov.com/j/1611085023?pwd=SUxPTEFLVzRFYXZycWdTWlJCdlhIdz09)

Meeting ID: 161 108 5023
Passcode: 869677

Law & Motion

1. 9:00 AM CASE NUMBER: L22-03223
CASE NAME: AMERICAN EXPRESS NATIONAL BANK VS. CHETT SALZMAN
*HEARING ON MOTION IN RE: MOTION TO ENTER JUDGMENT FILED BY PLN ON 9/12/2025
FILED BY:
TENTATIVE RULING:

Plaintiff American Express National Bank ("Plaintiff") filed a Motion to Enter Judgment on September 12, 2025 ("Motion to Enter Stipulated Judgment after Default"). The Motion to Enter Stipulated Judgment after Default was set for hearing on November 25, 2025.

The Court previously continued the matter to December 30, 2025, 9:00 a.m. in Department 34 of the Court to ensure that notice of the hearing has properly been given to the Defendant. While it appeared that the moving papers were served on Defendant, it was not apparent based on the filed proof of service whether the as-served moving papers gave notice of the assigned hearing date. **Plaintiff was ordered to give notice of the new hearing date to Defendant. See Order entered November 26, 2025.**

No filing appears of record reflecting that Plaintiff gave notice of the continued hearing date as ordered.

Background

The parties entered into that certain settlement agreement filed on July 11, 2023 (the "Settlement Agreement"), the terms of which included a stipulation for entry of judgment in the amount of \$7,869.86 plus costs, less any credits, in the event of a default by the defendant Chett Salzman ("Defendant") in the payment of a reduced amount of \$5,945.00, to be paid in accordance with the terms thereof (the "Payment Terms and Conditions"). See Declaration of Plaintiff's Counsel filed September 12, 2025 ("Supporting Declaration"), ¶¶5-6 and **Exhibit A** thereto. As part of the Settlement Agreement, the parties entered into a stipulation for entry of judgment in the event of a default. *Id.*, **Exhibit A**, ¶¶2, 9 and 10.

Defendant defaulted on the Payment Terms and Conditions. See Supporting Declaration, ¶7. Defendant failed to cure after notice. *Id.* at ¶8 and **Exhibit B** thereto.

After credit for amounts paid, there remains \$2,167.35 due and owing, plus costs of \$367.90. See Supporting Declaration, ¶¶6-7; see Memorandum of Costs filed September 12, 2025.

Analysis

Defendant was duly served with the motion. The motion is unopposed.

Disposition

The Court finds and orders as follows:

1. The Court finds that Defendant was duly served with the motion. **However, THE**

PARTIES ARE ORDERED TO APPEAR to confirm whether Plaintiff gave Defendant notice of the hearing date as ordered.

2. The Court finds that Defendant is in default of the Settlement Agreement.
3. Subject to Paragraph 1 above, the Motion to Enter Stipulated Judgment after Default is GRANTED. Plaintiff shall have judgment against Defendant in the principal amount of \$2,167.35, plus costs of \$367.90, for a total judgment of \$2,535.25.
4. Plaintiff's submitted form of order and/or money judgment against Defendant will be entered by the Court. Any prior dismissal entered herein against the Defendant is hereby set aside in connection with entry of such judgment.

2. 9:00 AM CASE NUMBER: L23-00312
CASE NAME: BANK OF AMERICA N.A. VS. PARDEEP SINGH
***HEARING ON MOTION IN RE: MOTION TO VACATE DISMISSAL AND ENTER JUDGMENT**
FILED BY:
TENTATIVE RULING:

Plaintiff Bank of America, N.A. ("Plaintiff") filed a Motion to Vacate Dismissal and Enter Judgment under Terms of Stipulated Settlement on August 7, 2025 ("Motion to Enter Stipulated Judgment after Default"). The Motion to Enter Stipulated Judgment after Default was set for hearing on October 28, 2025.

The Court previously continued the matter to December 2, 2025, 9:00 a.m. in Department 34 of the Court to ensure that notice of the hearing has properly been given to the Defendant. Plaintiff was ordered to give notice of this continued hearing date on the pending motion. See Order entered November 10, 2025.

No further filings of record on the Court's docket indicate that any such notice was given by Plaintiff to Defendant. An Amended Notice of Motion now appears on the Court's docket with a filing date of October 3, 2025, with notice of the prior October 28, 2025 date. However, no further Amended Notice of Motion appears with notice of the current December 2, 2025 hearing date.

Counsel for Plaintiff appeared at the December 2nd hearing and acknowledged that no further notice had given of the new December 2nd hearing date and requested a further opportunity to give timely notice and have this matter heard. **The Court continued the matter again to December 30, 2025, 9:00 a.m. in Department 34. Plaintiff was ordered to give notice of the new hearing date to Defendant forthwith.** See Minute Order dated December 2, 2025.

No further filings of record on the Court's docket indicate that any such notice was given by Plaintiff to Defendant. No amended notice of motion appears on the Court's docket.

Background

The parties entered into that certain settlement agreement filed on April 21, 2023 (the

“Settlement Agreement”), the terms of which included payment by the defendant Pardeep Singh (“Defendant”) in the amount of \$21,227.71, plus costs, to be paid in accordance with the terms thereof (the “Payment Terms and Conditions”). See Settlement Agreement, ¶¶1-4; see also Declaration filed as part of Motion to Enter Stipulated Judgment after Default (“Supporting Declaration”), ¶¶2-3. The Court hereby takes judicial notice of the Settlement Agreement. As part of the Settlement Agreement, the parties entered into a stipulation for entry of judgment in the event of a default. See Settlement Agreement, ¶¶1-4 and 7.

Defendant defaulted on the Payment Terms and Conditions. Supporting Declaration, ¶5. Defendant failed to cure after notice. *Id.* at ¶6 and **Exhibit A** thereto.

After credit for amounts paid, there remains \$14,102.71 due and owing, plus costs of \$518.50, for a total of \$14,621.21. See Supporting Declaration, ¶¶7-8.

Analysis

Defendant was duly served with the motion. The motion is unopposed.

Disposition

The Court finds and orders as follows:

- 1. The Motion to Enter Stipulated Judgment after Default is DROPPED from calendar.**

3. 9:00 AM CASE NUMBER: L24-03014

CASE NAME: CAPITAL ONE, N.A. VS. KAREN JEFFERSON

***HEARING ON MOTION IN RE: MOTION FOR JUDGMENT ON PLEADINGS FILED BY PLN ON 9/9/25
FILED BY:**

TENTATIVE RULING:

Plaintiff Capital One, N.A. (“Plaintiff”) filed a Motion for Judgment on the Pleadings on September 9, 2025 (the “Motion for Judgment on the Pleadings”). The Motion for Judgment on the Pleadings was set for hearing on November 25, 2025.

The Court previously continued the matter to December 30, 2025, 9:00 a.m. in Department 34 of the Court, at the parties’ request in light of ongoing settlement discussions. All parties have actual notice of the continued hearing date.

The Court issues the following tentative ruling, as it does not appear that the matter was been withdrawn or any notice of settlement filed.

Background

The Motion for Judgment on the Pleadings is based on the contention that the operative complaint states facts sufficient to constitute a cause of action and the answer does not state facts sufficient to constitute a defense. Plaintiff contends that defendant Karen L Jefferson (the “Defendant”) admits all statements in the complaint are true and that Defendant owes the alleged debt.

Analysis

A motion for judgment on the pleadings may be brought by a plaintiff where the complaint states facts sufficient to constitute a cause or causes of action against the defendant and the answer does not state facts sufficient to constitute a defense to the complaint. Code Civ. Proc. § 438(c); see Weil & Brown, *et al.*, *Cal. Prac. Guide: Civ. Pro. Before Trial* (The Rutter Group 2024) (“Rutter Civ. Pro.”) § 7:290. The grounds for a motion for judgment on the pleadings must appear on the face of the pleadings or be based on facts that a court may judicially notice. Civ. Proc. § 438(d); Rutter Civ. Pro., § 7:291. Matters that may be judicially noticed include a party’s admissions or concessions which cannot reasonably be controverted. *Pang v. Beverly Hospital, Inc.* (2000) 79 Cal.App.4th 986, 989-990.

Plaintiff’s Complaint alleges causes of action for Common Counts (Account Stated, Unjust Enrichment/Money Paid at Defendant’s Special Instance and Request) based on the allegation that Defendant became indebted in the amount of \$10,548.81 on an account. See Complaint filed April 12, 2024, p. 2, ¶¶8 and 10 and Attachments (1st Cause of Action).

Defendant’s Answer was filed October 2, 2024. The Answer denies the allegations of the Complaint and states various affirmative defenses. See Answer filed October 2, 2024.

Later, Plaintiff filed a motion to deem the truth of matters admitted in a set of Request for Admissions (the “RFAs”) served on Defendant which was granted by the Court. See Order entered July 3, 2025 (the “Deemed Admitted Order”). The Court takes judicial notice of the Deemed Admitted Order and the underlying court filings in connection with the Deemed Admitted Order.

Based upon the Deemed Admitted Order, it is evident that Defendant has been deemed to admit to the fact of the subject debt and the amount owing, \$10,548.81. See Deemed Admitted Order; see also RFAs attached as **Exhibit 1** to the Request for Judicial Notice filed September 9, 2025 (“RJN”).

Those admissions are binding upon Defendant for purposes of a motion for judgment on the pleadings. *Myers v. Trendwest Resorts, Inc.* (2009) 178 Cal.App.4th 735, 746 (“Judicial admissions may be made in a pleading, by stipulation during trial, or by response to request for admission.”).

While the Defendant pled denials and defenses by way of the Answer, Defendant failed to raise those issues timely in response to the requests for admissions and the Deemed Admitted Order has been made by the Court and has not been set aside. Nor has Defendant opposed this Motion for Judgment on the Pleadings.

Arguably, the RFAs do not contain a catch all admission to the effect that there is no cognizable defense to the liability that would negate all of the pled affirmative defenses. See Code Civ. Proc. § 438(c)(1)(A) (“[i]f the moving party is a plaintiff,” a motion for judgment on the pleadings may be made on the grounds that “...the complaint states facts sufficient to constitute a cause or causes of action against the defendant **and the answer does not state facts sufficient to constitute a defense to the complaint.**”) (Emphasis added).

While some of the affirmative defenses are expressly negated by the admissions made as part of the Deemed Admitted Order, others are not. For example, the Answer pleads the defenses of “Unjust Enrichment.” See Answer, p. 3. There is no RFA which admitted that this particular affirmative defense is without merit or otherwise constituted any admission that all of the pled affirmative defenses are without merit. See RJN, **Exhibit 1**, RFAs Nos. 1 through 13.

Nonetheless, the Court concludes here that the admissions made to the effect that “[t]he principal amount of \$10,548.81 due set forth in the Complaint filed in this matter is correct” and “[e]very statement or allegation contained in Plaintiff’s Complaint is true and correct” necessarily encompass an admission of no cognizable defense to the liability, especially in the absence of any opposition and showing to the contrary by Defendant.

Having considered the moving papers and any further pleadings submitted, the Court makes the following findings:

1. Plaintiff’s Complaint, on its face and considering the Deemed Admitted Order, states facts sufficient to constitute causes of action against the Defendant for Common Counts (1st Cause of Action). As to the 1st Cause of Action for Common Counts, the Court finds that pleadings are sufficient to constitute a cause of action based on a theory of Account Stated. The Court need not consider the other alternative theories of liability.
2. The Court further finds that the pleadings, in light of the Deemed Admitted Order, do not state facts sufficient to constitute a defense to the Complaint, as to Plaintiff’s 1st Cause of Action.
3. Defendant became indebted in the amount of \$10,548.81 on the subject credit card account, which amount is due and owing to Plaintiff.

Costs

The moving papers seek an award of recoverable costs in the sum of \$777.00. However, it does not appear that any Memorandum of Costs or other supporting declaration(s) regarding costs were filed as part of the moving papers. Any recoverable costs may be sought by a timely filed Memorandum of Costs or otherwise in accordance with applicable law.

Disposition

The Court finds and orders as follows:

1. The Motion for Judgment on the Pleadings is GRANTED.
2. The trial date of April 8, 2026 is VACATED.
3. A proposed form of order was lodged with the Court which the Court shall execute and enter.

4. 9:00 AM CASE NUMBER: L24-05801
CASE NAME: PORTFOLIO RECOVERY ASSOCIATES, LLC VS. YAMESE PARKERSMITH
***HEARING ON MOTION IN RE: MOTION TO ENTER JUDGMENT UNDER STIP FILED BY PLNTF ON**

8/7/25

FILED BY:

TENTATIVE RULING:

Plaintiff Portfolio Recovery Associates, LLC ("Plaintiff") filed a Motion to Enter Judgment under Terms of Stipulated Settlement on August 7, 2025 ("Motion to Enter Stipulated Judgment after Default"). The Motion to Enter Stipulated Judgment after Default was set for hearing on October 28, 2025.

Plaintiff appeared and confirmed that notice of the hearing date had not been given to Defendant and, therefore, the Court continued the matter to December 2, 2025, 9:00 a.m. in Department 34 of the Court to ensure that notice has properly been given to the Defendant. Plaintiff was ordered to give notice to Defendant of this continued hearing date on the pending motion. See Order entered November 10, 2025.

No further filings of record on the Court's docket indicate that any such notice was given by Plaintiff to Defendant. An Amended Notice of Motion now appears on the Court's docket with a filing date of October 3, 2025, with notice of the prior October 28, 2025 date. However, no further Amended Notice of Motion appears with notice of the current December 2, 2025 hearing date.

Counsel for Plaintiff appeared at the December 2nd hearing and acknowledged that no further notice had given of the new December 2nd hearing date and requested a further opportunity to give timely notice and have this matter heard. **The Court continued the matter again to December 30, 2025, 9:00 a.m. in Department 34. Plaintiff was ordered to give notice of the new hearing date to Defendant forthwith.** See Minutes entered December 2, 2025.

No further filings of record on the Court's docket indicate that any such notice was given by Plaintiff to Defendant. No amended notice of motion appears on the Court's docket.

Background

The parties entered into that certain settlement agreement filed on November 1, 2024 (the "Settlement Agreement"), the terms of which included payment by the defendant Yamese Parkersmith ("Defendant") in the amount of \$4,354.42 plus costs, to be paid in accordance with the terms thereof (the "Payment Terms and Conditions"). See Request for Judicial Notice filed August 7, 2025 ("RJN"), **Exhibit B**, Settlement Agreement, ¶¶1-4; see also Declaration filed as part of Motion to Enter Stipulated Judgment after Default ("Supporting Declaration"), ¶¶2-3. The Court hereby takes judicial notice of the Settlement Agreement. As part of the Settlement Agreement, the parties entered into a stipulation for entry of judgment in the event of a default. See Settlement Agreement, ¶¶1-4 and 7.

Defendant defaulted on the Payment Terms and Conditions. Supporting Declaration, ¶4. Defendant failed to cure after notice. *Id.* at ¶5 and **Exhibit A** thereto.

After credit for amounts paid, there remains \$4,154.42 due and owing, plus costs of \$495.61, for a total of \$4,650.03. See Supporting Declaration, ¶¶6-7.

Analysis

Defendant was duly served with the motion. The motion is unopposed.

Disposition

The Court finds and orders as follows:

- 1. The Motion to Enter Stipulated Judgment after Default is DROPPED from calendar.**

5. 9:00 AM CASE NUMBER: L25-03679

CASE NAME: BANK OF AMERICA N.A. VS. TENISHA GARDNER

***HEARING ON MOTION IN RE: LEAVE TO FILE FIRST AMENDED ANSWER AND TO ADD X-COMPLAINT; MPA; DEC OF T. GARDNER**

FILED BY:

TENTATIVE RULING:

Defendant Tenisha M Gardner ("Defendant") filed a Motion for Leave to File First Amended Answer and to add Cross-Complaint on November 12, 2025 (the "Motion for Leave to File"). The Motion for Leave to File was set for hearing on December 30, 2025.

Background

Plaintiff Bank of America, N.A. ("Plaintiff") filed its Complaint on April 4, 2025 (the "Complaint"). The Complaint alleges a breach of contract cause of action, contending that Defendant failed to pay an amount due and owing on a credit card account with Plaintiff. See Complaint filed April 4, 2025, pp. 1-2 and Attachment BC-1 through BC-4.

An Answer was filed by Defendant on June 4, 2025 (the "Answer"). The Answer pleads various defenses, including an asserted violation of "the Fair Debt Collection Practices Act ("FDCPA") and Rosenthal Fair Debt Collection Practices Act ("RFDCPA)." See Answer, p. 1, *et seq.*

Defendant seeks leave to file a cross-complaint to assert affirmative claims for the violation of those statutes. See Motion for Leave to File, Memorandum of Points and Authorities, p. 4; see also Declaration of Tenisha M Gardner (the "Supporting Declaration"), ¶1 *et seq.*

Plaintiff filed an opposition brief. See Opposition to Defendant's Motion for Leave of Court to File Amended Answer and to Add Cross-Complaint filed December 16, 2025 (the "Opposition").

Analysis

1. Service of the Motion Papers

As an initial matter, Plaintiff contends that Defendant failed to properly serve the Motion for Leave to File because she served her court papers herself. See Opposition, p. 2.

Plaintiff fails to cite any supporting evidence for this contention and, indeed, appears to materially misrepresent the record on this motion. Plaintiff's motion states "Defendant continues to serve documents, including this motion, by herself." See Opposition, p. 2.

Defendant's Proof of Service indicates that the Motion for Leave to File was served by a person named Arelious Jones, not Defendant herself. See Proof of Service filed November 19, 2025.

The Court rejects Plaintiff's contention and admonishes Plaintiff for presenting this frivolous argument without any good faith evidentiary support.

2. Leave to File Cross-Complaint

At any time during the course of a pending action, a court has authority to permit defendant to file or amend a cross-complaint. Code Civ. Proc. § 426.50; see Weil & Brown, *et al.*, *Cal. Prac. Guide: Civ. Pro. Before Trial* (The Rutter Group 2025) ("Weil & Brown"), § 6:518. A court shall grant leave as long as defendant is acting in good faith. See Weil & Brown, § 6:518 (and authorities cited therein). A motion to file a cross-complaint at any time during the course of the action must be granted unless bad faith of the moving party is demonstrated where forfeiture would otherwise result. *Silver Orgs. v. Frank* (1990) 217 Cal.App.3d 94, 99. Factors such as oversight, inadvertence, neglect, mistake or other cause, are insufficient grounds to deny the motion unless accompanied by bad faith. *Id.*

Defendant's evidence reflects Defendant is acting in good faith. She describes that she came learn that the affirmative claims that she tried to state by way of an answer needed to be pled in a separate cross-complaint. Supporting Declaration, ¶13. Defendant also notes that trial has not been set as yet. *Id.* at ¶14.

While Plaintiff takes issue with whether Defendant can state valid causes of action, the Court concludes that there are other procedural mechanisms available to Plaintiff, such as a demurrer, by which Plaintiff can raise such issues. The Court does not conclude that the requested leave to file a cross-complaint is in bad faith.

Accordingly, the Court finds that Defendant's request to file a belated cross-complaint is made in good faith and the Court hereby grants leave, as set forth further below.

3. Leave to Amend Answer

The court has discretion "upon any terms as may be just" to allow an amendment to any pleading. Code Civ. Proc. § 473(a)(1); see *Hong Sang Market, Inc. v. Peng* (2018) 20 Cal.App.5th 474, 488 ("*Hong Sang Market, Inc.*"); see also Weil & Brown, § 6:610. Leave to amend a pleading, including an answer, is entrusted to the sound discretion of the trial court. *Hong Sang Market, Inc.*, *supra*, 20 Cal.App.5th at 488.

Having considered all of the evidence before the Court and the parties' arguments and in the exercise of its discretion, the Court grants leave, as set forth further below, to Defendant to amend her answer.

Disposition

The Court further finds and orders as follows:

1. Defendant's Motion for Leave to File is GRANTED.
2. Defendant is granted leave to file a cross-complaint herein. Such cross-complaint shall be filed and served **within ten (10) days of notice of entry of this order**.
3. Defendant is granted leave to file an amended answer herein. Such amended answer

shall be filed and served **within ten (10) days of notice of entry of this order.**

6. 9:00 AM CASE NUMBER: L25-04765

CASE NAME: ANA RODRIGUEZ VS. WATERS LAUNDRIES, INC.

*HEARING ON MOTION IN RE: ENFORCE SETTLEMENT AGREEMENT PURSUANT TO CCP 664.6 BY
PLTFS ON 9-30-25

FILED BY: RODRIGUEZ, ANA

TENTATIVE RULING:

Plaintiffs Ana Rodriguez and Mailyn Johana De Leon Rabanales (“Plaintiffs”) filed a Motion to Enforce Settlement Agreement on September 30, 2025 (“Motion to Enforce Settlement Agreement”). The Motion to Enforce Settlement Agreement was set for hearing on December 30, 2025.

Background

Plaintiffs and defendant _ (“Defendant”) entered into that certain Confidential Mutual Release Agreement dated November 26, 2024 (the “Settlement Agreement”). See Declaration of Emily G. Horrigan filed September 30, 2025 (the “Supporting Declaration”), ¶2; see also Settlement Agreement attached as **Exhibit 1** to Plaintiffs’ Notice of Lodgment filed October 9, 2025.

The Settlement Agreement provides for a settlement payment of \$15,000 (the “Settlement Payment”) by a certain date:

2. Settlement Payment. Claimants shall be entitled to the following consideration from Respondent for the promises and agreements set forth herein. By August 11, 2024, and upon delivery of W-9 forms from Claimants and Claimants’ counsel, Respondent will pay Claimants a total settlement amount of Fifteen Thousand Dollars (\$15,000.00) (the “Settlement Payment”). The Settlement Payment will be delivered to the offices of Claimants’ counsel at 1801 Century Park East, Suite 850, Los Angeles, CA 90067 and allocated as follows:

Settlement Agreement, ¶2.

The numbers do not add up and are riddled with errors. Although the Settlement Agreement specifies a \$15,000 Settlement Payment, the Supporting Declaration appears to erroneously refer to a \$10,000 payment. See Supporting Declaration, ¶2.

12 Fees and Costs, Totaling \$11,736.50. The Settlement Agreement provides payment of
13 \$10,000.00 to settle Plaintiffs’ individual claims, paid by August 11, 2024, and upon delivery of
14 W-9 forms. Because the Settlement Agreement was not fully executed until November 26, 2024,

Plaintiffs’ papers contend that “Defendant owes \$10,000.00 to Plaintiffs, including attorneys’ fees **and costs.**” See MPA, p. 7, Ins. 26-27 (emphasis added). Yet, confusingly, the motion papers also refer to the \$15,000 settlement amount in other places. See e.g. MPA, p. 6. Moreover, by Plaintiffs’ own stated figures, the \$10,000 stated in the MPA does not include costs if the total were actually \$11,736.50 as stated later in the papers (see below).

Plaintiffs’ papers later state that Defendant owes “\$6,000.00 principle [sic] contractual payment

due Plaintiffs under the Settlement Agreement, as well as \$4,000.00 in attorney fees, **and \$1,736.50 costs** related to this enforcement action, for a total judgment of \$11,736.50.” See MPA, p. 11 (emphasis added). The \$1,736.50 referenced in the MPA is not simply “costs,” but appears to be the total of attorneys’ fees (\$1,513.60) and costs (\$222.90).* See Supporting Declaration, ¶13.

Importantly, the \$6,000 principal stated in the MPA appears to be inaccurate. The only \$6,000 principal amount referenced in the agreement is the attorneys’ fees portion. See Settlement Agreement, ¶2 [“One check made payable to "Melmed Law Group, P.C." for Six Thousand Dollars (\$6,000)]. Nothing in the Supporting Declaration suggests that this was the only unpaid amount.

The principal amount due under Settlement Agreement appears to be the three (3) \$3,000 payments plus the \$6,000 attorneys’ fees portion, which total the \$15,000 set forth in Paragraph 2 of Settlement Agreement. See Settlement Agreement, ¶2.

The Supporting Declaration appears to represent that no payments were made by Defendant. See Settlement Agreement, ¶5. So it is not clear to the Court why the principal balance due would be some figure other than the \$15,000 settlement amount.

*The Court further notes that the Supporting Declaration fails to include a total of the referenced costs, requiring the Court to “do the math.” See Supporting Declaration, ¶13. And in doing the math, it appears that the referenced cost items (\$77.70, \$15.70 and \$129.50) total \$222.90. Plaintiffs’ figure of \$11,736.50 appears to be the total of \$222.90 in costs, attorneys’ fees of \$1,513.60 and a purported \$10,000 in principal. Thus, the “\$1,736.50 costs” stated in the MPA is actually the total of the referenced attorneys’ fees and costs is (\$1,513.60 plus \$222.90).

The Court denies the motion without prejudice to resubmission with clarification of the accounting.

Analysis

Defendant was duly served with the motion. The motion is unopposed.

Disposition

The Court finds and orders as follows:

1. The Motion to Enforce Settlement Agreement is DENIED, without prejudice.
2. In the exercise of the Court’s discretion, the clerk of the Court is directed to set the matter for a Case Management Conference (CMC) and give notice to the parties of the CMC.

***HEARING ON MOTION IN RE: NTC AND MTN FOR RECONSIDERATION REGARDING
COMMISSIONERS JURISDICTION AND REQUEST FOR REVIEW OF NEW EVIDENCE
FILED BY: LIU, RUBY SHE**

TENTATIVE RULING:

Respondent Ruby Liu (“Respondent”) filed a Motion for Reconsideration on December 1, 2025 (the “Motion for Reconsideration”). The Motion for Reconsideration was set for hearing on December 30, 2025.

Background

This matter is a Civil Harassment Restraining Order proceeding filed by the petitioner and protected party Malina Mae Curiale (“Petitioner”).

A hearing was held by the Court on September 2, 2025. See Minute Order dated September 2, 2025. Both parties were present. *Id.* An evidentiary hearing was conducted and the Court considered the testimony of the parties and all other evidence submitted. *Id.*

The Court granted the CHRO and entered its Civil Harassment Restraining Order after Hearing (the “CHRO”) as against the restrained party, Respondent.

Respondent filed an appeal of the ruling and also filed a prior motion seeking to set aside the ruling and requesting a “de novo” hearing. The prior motion was denied given the pending appeal. See Order dated October 31, 2025. A notice of abandonment of the appeal was filed by Respondent on November 4, 2025.

Respondent then filed a Motion to Vacate Civil Restraining Order on October 15, 2025 (the “Motion to Vacate CHRO”). The Motion to Vacate CHRO was denied, in full, by the Court’s Order on Motion entered November 18, 2025 (the “Order Denying Motion to Vacate CHRO”).

By this Motion for Reconsideration, Respondent seeks reconsideration of the Court’s Order Denying Motion to Vacate CHRO.

Analysis

1. Lack of Adequate Notice

Although Respondent filed a Proof of Service of the Motion for Reconsideration on December 12, 2025, it appears that the notice given was defective. The caption page of the Motion for Reconsideration does not appear to have had the motion hearing date, time and department written in on it. Nothing in the filed Proof of Service or any other pleading filed on the motion indicates that notice of the motion hearing date, time and department was given to the protected party Petitioner. For that reason alone, the Court would deny the motion.

2. No Basis for Reconsideration

Even if proper notice of the motion had been given, the Court would deny the motion.

Code of Civil Procedure section 1008 governs a motion for reconsideration. The statute provides “[w]hen an application for an order has been made to a judge, or to a court, and refused in whole or in part, or granted, or granted conditionally, or on terms, any party affected

by the order may, within 10 days after service upon the party of written notice of entry of the order and based upon new or different facts, circumstances, or law, make application to the same judge or court that made the order, to reconsider the matter and modify, amend, or revoke the prior order.” Code Civ. Proc. § 1008 (emphasis added). The different state of facts language in the statute requires that the party seeking reconsideration provide both newly discovered evidence and an explanation for the failure to have produced such evidence earlier. *Robbins v. Los Angeles Unified School Dist.* (1992) 3 Cal.App.4th 313, 317.

Respondent refers, among other things, to the “new facts and evidence presented in Section III” of her Motion for Reconsideration. See Declaration of Ruby Liu filed December 1, 2025, p. 2, Ins. 1-20. The facts referenced in Section III of the motion are supposed evidence disproving the protected party Petitioner’s claimed pattern of harassment that led to the subject CHRO. Motion for Reconsideration, p. 4 (Section III.A labeled “Evidence Contradicting Petitioner’s Claimed ‘Two-Year Harassment Timeline’”). Those are NOT substantially new facts. Respondent previously presented considerable evidence relating to the pattern of harassment which she argued warranted vacating the CHRO. That evidence was raised and discussed, at length, in her prior motion papers, which were considered in full by the Court. See e.g. Motion to Vacate CHRO, p. 6 (“The Petitioner’s false testimony of the two-year timeline was meant to establish long term harassment to mislead the court. I have never harassed her...”). Aside from a few items addressed below, Respondent’s broad recitation and arguments here rely on substantially the same facts as previously considered and rejected by the Court. Respondent attempts to re-argue substantially the same matters previously considered by the Court. See *San Francisco v. Muller* (1960) 177 Cal.App.2d 600, 603 (“...the court will refuse to consider a new motion supported by substantially the same showing as the one denied.”).

Moreover, Respondent conflates making a showing of new facts and evidence not presented in connection with the last motion denied by the Court and facts and evidence not presented in the underlying CHRO proceeding. The issue is not showing new facts and evidence that were not raised at the subject underlying CHRO hearing. The issue, for purposes of reconsideration of the Court’s November 18, 2025 Order, is whether there are new facts and evidence not presented in connection with the last motion leading to that order. The issue of a professed inability to secure third-party information relating to social media and other evidence that Respondent believes could have disproved Petitioner’s contentions was raised and considered in the earlier motion proceedings.

To the extent that Respondent has specifically identified new evidence not presented in connection with the Motion to Vacate CHRO, the Court concludes that Respondent has failed to make an adequate showing of diligence. Just indicating that the evidence was not in a party’s possession or control, does not demonstrate the efforts to identify and procure the evidence. Even if Respondent had diligently sought to procure the evidence and was unable to proffer it in

the prior motion proceedings, none of the “new evidence” changes the Court’s view on the merits. Among other things, the Court has considered and rejects the argument that the discovery of “a text message from my husband regarding an alleged false abuse-based immigration claim” after the proceedings on the Motion to Vacate CHRO justifies reconsideration. Even if newly discovered, the issue and other evidence relating to it was raised previously by Respondent. The issue of the Commissioner excluding information regarding immigration status was raised during the prior hearing and the Court was clear that nothing about that issue would alter its conclusions regarding the lack of any grounds to vacate the CHRO. The Court also considered the transcript of the underlying CHRO hearing before the Commissioner, including those portions where the immigration related issue was addressed. One more text message on the same issue does not constitute “new or different facts” and, even if it did, the evidence does not change the Court’s conclusions. In addition, nothing in the August 5th transcript changes the Court’s conclusions.

Disposition

The Court finds and orders as follows:

1. The Motion for Reconsideration is DENIED.